

Agape — Testimonial Review & 42 CFR Part 2 Compliance Worksheet

Testimonial Review & 42 CFR Part 2 Worksheet

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Project: Agape Counseling Services — Website Rebuild **Document Version:** 1.1.0 **Date:** 2026-06-20 (rev: aligned with Cloudflare Pages hosting pivot) **Companion spec:** `DESIGN.md` §6.2 (42 CFR Part 2) **Filing target:** Source code archive delivered at handoff **Retention:** 6 years from testimonial publication date (standard clinical record retention)

Purpose. This worksheet is the legal gate between the legacy site's testimonials and the rebuilt site. Federal regulation **42 CFR Part 2** protects the confidentiality of substance use disorder (SUD) treatment records. Even seemingly harmless "this place saved my life" content can cross the disclosure line if it names staff, identifies a person as a patient, or appears alongside third-party trackers. The client's representative with authority over clinical communications must sign this worksheet before the rebuild goes live.

Instructions

1. Read `DESIGN.md` §6.2 in full before completing.
2. For each of the 7 legacy testimonials below, mark ONE decision: `KEEP` (publish as-is), `MODIFY` (publish with the rewritten text in §3), or `DROP` (do not publish).
3. For every `KEEP` or `MODIFY` decision, confirm the consent status: the testimonial author must have signed a 42 CFR Part 2-compliant authorization on file. A blank/template form is in Appendix A.
4. Sign the attestation in §4. The signatory must be a person with authority over Agape's clinical communications — typically the Executive Director, Clinical Director, or Compliance Officer.
5. File the signed worksheet, the signed consent forms, and this document together with the source code archive that the developer delivers at handoff (the dev retains a copy privately for the project's audit trail).

§1 — Testimonial Review Table

Each row has been pre-filled with a **42 CFR Part 2 risk assessment** and **recommended action** based on a content review of the legacy site on 2026-06-18. The client is not obligated to follow the recommendation — the recommendation exists to make the trade-off explicit, not to pre-empt the decision.

#	Author (legacy)	Verbatim excerpt (legacy site)	42 CFR Part 2 risk	Recommended action	Client decision (KEEP / MODIFY / DROP)	Consent on file?
1	Cono C.	"Absolutely incredible team!! I've watched my life change for the better tremendously and wouldn't have gotten there without Agape. Julie is Amazing and helped me reach goals I didn't see possible. If you are looking to better your life, look no further than Agape."	MEDIUM — names a specific staff member ("Julie") at the program. Combined with first-name + last-initial attribution, this identifies the author as an Agape patient treated by that specific clinician.	MODIFY — drop the staff name; keep the rest with light copy edit.	_____	☐ Yes (date: _____) ☐ To obtain ☐ N/A
2	Justine W.	"Agape saved my life in the beginning of my recovery ...I will forever be grateful to this place and everyone in it!!!...shout out to Jaime, Tammy, Julie, Cassidy, Christine !!!... you guys are Amazing!!!.. I love you!!"	HIGH — names four staff members AND self-identifies as being "in recovery" at Agape. The combination of named staff + facility + active-recovery self-disclosure is the most aggressive 42 CFR Part 2 disclosure surface in the legacy testimonials.	DROP , or full re-authorization under 42 CFR Part 2 consent (Appendix A) covering both attribution and content.	_____	☐ Yes (date: _____) ☐ To obtain ☐ N/A

#	Author (legacy)	Verbatim excerpt (legacy site)	42 CFR Part 2 risk	Recommended action	Client decision (KEEP / MODIFY / DROP)	Consent on file?
3	John O.	"Great facility. Amazing people. Real world down to earth counselors. Happy to be a part of the Agape Services family."	LOW-MEDIUM — no specific names; generic acknowledgment of "the Agape Services family" self-identifies as a person connected to the program. Could read as alumni, family member, or staff.	KEEP with consent on file, or MODIFY to remove the family-membership framing.	_____	☐ Yes (date: _____) ☐ To obtain ☐ N/A
4	Lisa K.	"I have had the pleasure of working with this program for the past year. My experience was totally awesome. The counselors were great and helped me to live my life again. I am grateful for all they have done for me. I highly recommend them if you are in need of help. Let them bring you joy and happiness	MEDIUM — "working with this program for the past year" self-identifies as a patient. No specific staff names. The framing of recovery ("live my life again") is mild but adds to the disclosure surface.	MODIFY — anonymize the program reference and shorten.	_____	☐ Yes (date: _____) ☐ To obtain ☐ N/A

#	Author (legacy)	Verbatim excerpt (legacy site)	42 CFR Part 2 risk	Recommended action	Client decision (KEEP / MODIFY / DROP)	Consent on file?
		again. I did and am forever thankful!!"				
5	Matt M.	"I've been to this place acouple of times for counseling... The counselors are great, they are very friendly and easy to talk to... I would certainly recommend them to anyone that needs a good IOP or counselor... percieve a bad experience are far more likely to leave a review... Thank you Agape for all that you have done for me."	MEDIUM — names a specific program ("IOP") at Agape, and the text self-identifies as a person who has attended. Several copy-edit issues.	MODIFY — fix typos, drop the IOP mention, shorten.	_____	☐ Yes (date: _____) ☐ To obtain ☐ N/A
6	Chris L.	"...it has helped me so much it literally changed my life for the better... my counselor	HIGH — explicit "I might not be here today" phrasing implies prior suicidality; combined with self-identification as	DROP, or MODIFY to a short anonymized quote with the "here today" phrasing removed.	_____	☐ Yes (date: _____) ☐ To obtain ☐ N/A

#	Author (legacy)	Verbatim excerpt (legacy site)	42 CFR Part 2 risk	Recommended action	Client decision (KEEP / MODIFY / DROP)	Consent on file?
		the other day asked me if I wanted to graduate... I might not be here today if it wasn't for the help that they gave me... thank u agape for helping me be the man I am today..."	a patient and reference to "my counselor," this is a clinically sensitive disclosure. The "graduate" reference localizes the program.			
7	Jerry L.	"I like the service really good counselors and very very helpful"	LOW — short, generic, no specific names, no recovery self-disclosure.	KEEP with consent on file, or MODIFY for grammar.	_____	☐ Yes (date: _____) ☐ To obtain ☐ N/A

§2 — Summary Count (filled in by client)

Decision	Count
KEEP (publish as-is, consent on file)	_____
MODIFY (publish with rewritten text from §3)	_____
DROP (do not publish on the rebuilt site)	_____
Total	7

Note on **KEEP decisions.** A 42 CFR Part 2-compliant authorization (Appendix A) must be on file for every **KEEP** or **MODIFY** decision **before** the testimonial is published. If consent is not on file, the decision must be changed to **DROP** or to **MODIFY** with an anonymized rewrite that removes identifying context.

§3 — Modified Text (only for testimonials marked MODIFY)

For each testimonial marked **MODIFY**, write the rewritten text below. The rewrite must:

- Remove all references to specific staff by name.
- Remove self-identification as a patient of Agape (unless covered by consent).
- Remove program-specific identifiers (e.g., "IOP", "graduate") unless covered.
- Be in the author's voice (preserve the meaning, not just the form).
- Pass the 42 CFR Part 2 review bar.

1. Cono C. — modified text (if any)

[Client fills in]

2. Justine W. — modified text (only if not DROPPED)

[Client fills in – note: HIGH risk; recommend DROP]

3. John O. — modified text (if any)

[Client fills in]

4. Lisa K. — modified text (if any)

[Client fills in]

5. Matt M. — modified text (if any)

[Client fills in]

6. Chris L. — modified text (only if not DROPPED)

[Client fills in – note: HIGH risk; recommend DROP]

7. Jerry L. — modified text (if any)

[Client fills in]

§4 — Compliance Attestation

I, the undersigned, am an authorized representative of **Agape Counseling Services** with authority over the program's clinical communications and marketing materials. I attest that:

1. I have read **DESIGN.md** §6.2 (42 CFR Part 2 Compliance) in full and understand the federal regulation and its application to the public-facing website.
2. For each testimonial marked **KEEP** or **MODIFY** in §1, I confirm that a **42 CFR Part 2-compliant written authorization** has been signed by the named individual and is on file with Agape Counseling Services. A blank/template form is in Appendix A; signed forms are retained for **6 years from publication date** per standard clinical record retention.
3. For each testimonial marked **DROP**, I confirm that Agape will not publish the testimonial on the rebuilt website, and will remove it from any other Agape-controlled public surface as part of the rebuild migration.
4. I understand that 42 CFR Part 2 imposes **criminal penalties** (\$500–\$5,000 first offense, higher for subsequent) for unauthorized disclosure of SUD treatment information, and that the public-facing nature of a website does not exempt the program from these obligations.
5. I release the developer and any successor maintainer of the Agape website from liability for any testimonial published in accordance with the decisions recorded in this worksheet, on the basis that the program's authorized representative has approved each publication.
6. I understand that the completed, signed version of this worksheet, together with all signed 42 CFR Part 2 consent forms, becomes part of the project's compliance record and is filed alongside **COMPLIANCE.md** in the source code archive delivered at handoff.

Signature:

Printed name:

Title / Role:

Date:

Email:

Phone:

Witness (optional but recommended):

Witness signature / date:

§5 — Filing Instructions

1. **Save** this worksheet, with all signatures, alongside the source code archive that the developer delivers at handoff (the dev retains a copy for the project's audit trail).
2. **Attach** a folder of signed 42 CFR Part 2 consent forms (Appendix A) — one per testimonial marked **KEEP** or **MODIFY**. Suggest the path `compliance/testimonial-consents/`.
3. **Update** the `src/content/testimonials/` directory in the source code archive to reflect the §1 decisions:
 - For each **KEEP**: copy the legacy text into a `.md` file (correcting the typos noted in DESIGN.md §4.4).
 - For each **MODIFY**: copy the rewritten text from §3 into a `.md` file.
 - For each **DROP**: do not create a `.md` file.
4. **Annotate** the front matter of each surviving testimonial with the consent-on-file date and a hash or filename of the signed form.

5. **Send** the updated `.md` file(s) (and any updated `compliance/` files) to the dev. The dev rebuilds and pushes via `wrangler pages deploy ./dist`; the testimonial(s) appear on the next deploy (~30 seconds).
6. **Retain** the worksheet, the consent forms, and the COMPLIANCE.md record for **6 years** from the date of publication, in a location accessible to Agape's clinical compliance officer.

Appendix A — 42 CFR Part 2 Testimonial Consent Form (Template)

Use this template for every testimonial marked **KEEP** or **MODIFY**. A signed copy must be on file before the testimonial is published. Fields marked [...] must be filled in; the rest of the language is **required** under 42 CFR §2.31 and must not be paraphrased away.

Authorization to Use Testimonial in Marketing Materials

Patient name: _____

Date of birth: _____

Program name: Agape Counseling Services

Program address: 815 U.S. 9, Lanoka Harbor, NJ 08734

I, the patient named above, authorize Agape Counseling Services to use a testimonial that I have provided about my experience with the program, in the form set out below, for the purposes and to the recipients described in this authorization.

1. Purpose of the disclosure. Publication on the Agape Counseling Services public-facing website at agapenj.org and in any successor website domain operated by the program. Optional secondary use in printed brochures, social media posts on Agape-controlled accounts, and press materials, **if checked below:**

- ☐ Printed brochures
- ☐ Agape-controlled social media (Facebook, Instagram, etc.) — link only, NOT as an embedded post
- ☐ Press / news materials
- ☐ Other: _____

2. What information may be disclosed. The testimonial text provided by me, attached to this authorization as **Exhibit A**, in the form written below or in any edited form I have approved in writing

in advance of publication.

3. To whom the disclosure may be made. The general public via the channels listed in §1.

4. Expiration. This authorization expires on the earlier of (a) _____ [date, up to 1 year from signature], or (b) my written revocation of this authorization.

5. Right to revoke. I understand that I may revoke this authorization at any time, in writing, except to the extent that Agape Counseling Services has already acted in reliance on it. My revocation must be delivered to: **info@agapenj.org** or to the program address above.

6. Treatment cannot be conditioned. I understand that Agape Counseling Services may not condition my treatment, payment, enrollment, or eligibility for benefits on whether I sign this authorization.

7. Re-disclosure warning. I understand that information disclosed pursuant to this authorization may be subject to re-disclosure by the recipient and may no longer be protected by 42 CFR Part 2 or other applicable confidentiality rules.

8. Testimonial text (Exhibit A). Attached, initialed by both parties, and dated.

Patient signature: _____

Patient printed name: _____

Date: _____

Program representative signature: _____

Program representative printed name: _____

Title: _____

Date: _____

Internal use only — not part of the patient-facing form.

- Filed in: `compliance/testimonial-consents/[patient-name]-[date].pdf`
 - Hash of signed form recorded in: `src/content/testimonials/[name].md` frontmatter
(`consent_hash:` , `consent_date:`)
 - Review date (6 years from publication): _____
 - Compliance officer initials at filing: _____
-

End of worksheet. File the completed, signed version as `COMPLIANCE.md` before deploying the rebuilt site to production.

— end of document —